

		Moving party to give notice.
102	Chao v. Air Combat USA, 2022-01258475	Motion to be Relieved as Counsel – MOOT
103		
104	Doe vs. Goodwill of Orange County, 2023-01341615	Motion for Determination of Good Faith Settlement – DENIED WITHOUT PREJUDICE Defendant Sodexo Management, Inc. moves for an order determining that the settlement between Sodexo and Plaintiff Jane Doe was made in good faith pursuant to Code of Civil Procedure section 877.6. Defendant Goodwill of Orange County opposes the motion. The Motion for Determination of Good Faith Settlement is DENIED, without prejudice. Sodexo was named as DOE 41. (ROA 61.) Plaintiff asserts eight (8) causes of action against defendants in her Complaint. Only the eighth cause of action for general negligence is asserted against DOES 41-60. The evidence provides that Plaintiff and Sodexo reached a settlement in the amount of \$1,900,000. (Decl. of Barry Rodolff, ¶¶ 3-4; Ex. A to Reply Declaration of Barry L. Rodolff, Settlement Agreement.) The moving papers for a determination of good faith settlement must establish “a prima facie showing of a good faith settlement.” (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1262 .) The most important factor is the settling party’s proportionate liability. (Mattco Forge, Inc. v. Arthur Young & Co. (1995) 38 Cal.App.4th 1337, 1350.) The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor’s liability to be. (Grand Terrace,

supra, 192 Cal.App.3d at p. 1262.) There must be substantial, competent evidence of the settling parties' proportionate liability and all other Tech-Bilt factors before the court may grant a motion for good faith settlement in a contested case. (Mattco Forge, Inc., supra, 38 Cal.App.4th at p. 1351.)

"The party asserting the lack of good faith, who has the burden of proof on that issue (§877.6, subd.(d)), should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such demonstration would establish that the proposed settlement was not a 'settlement made in good faith' within the terms of section 877.6." (Tech Bilt, supra, 38 Cal.3d at p. 499-500.)

"[A] plaintiff's claims for damages are not determinative in finding good faith; rather, the court is called upon 'to make a "rough approximation" of what the plaintiff would actually recover' [citation], with the evaluation to be made 'on the basis of information available at the time of settlement.' [Citation.]" (Dole Food Co. Inc. v. Superior Court (2015) 242 Cal.App.4th 894, 904.)

Here, Goodwill correctly argues that Sodexo has not provided any evidence supporting a rough approximation of what Plaintiff would actually recover. Indeed, there is no argument or evidence as to Plaintiff's damages other than a general statement that Plaintiff's alleged damages include physical and emotional injuries arising from the alleged sexual assaults. (Motion, 6:17-18.) Instead, Sodexo's counsel "personally conducted a search on VerdictSearch for relevant settlements and verdicts in Orange County" involving sexual assault in the County of Orange, and that "[t]he system indicated that the mean recovery for a plaintiff in a sexual assault case in Orange County is \$1,003,744." (Decl. of Barry Rodolff, ¶ 5.) The evaluation of good faith is not based on the mean recovery for plaintiffs in sexual assault cases, but the rough approximation of the total recovery for Plaintiff in this action.

Without evidence of the rough approximation of what Plaintiff in this action would actually recovery, the

		Court is unable to determine whether the settlement amount is within the reasonable range, or within the ballpark, of Sodexo's share of liability for Plaintiff's injuries. Based on the foregoing, Sodexo has not made a prima facie showing of a good faith settlement. Goodwill to give notice.
105	Esteban vs. Urth Payroll Services, Inc., 2025-01511289	Motion to Strike – MOOT
106		
107	Hodges vs. Fillman, 2024-01442297	Motion for Leave to File Amended Cross-Complaint – GRANTED Cross-Complainants Michael P. Fillman, William E. Wonderly, Avon Wonderly, and Chandler Wonderly ("Cross-Complainants") move for leave to file a First Amended Cross-Complaint. (Code Civ. Proc. §§ 473(a)(1) & 576.) The motion is unopposed. Courts liberally allow amendments to permit lawsuits to be determined on their merits. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939; Desney v. Wilder (1956) 46 Cal.2d 715, 751.) "It is well established that 'California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.'" (Board of Trustees v. Superior Court (2007) 149 Cal.App.4th 1154, 1163.) The Court finds that Cross-Complainants have met all procedural requirements and provided all information in support of the amendment pursuant to California Rules of Court, rule 3.1324. The Court finds the non-opposition is an implied concession to the merits of the motion. (Herzberg v.